

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT

This NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT (this "Agreement") dated as of the date executed below (the "Effective Date"), by and between Precision Valve Holdings Corporation (collectively with its parents and subsidiaries, "Precision"), and the undersigned entity (the "Company"). On a collective basis, Precision and the Company may be referred to as the "Parties" to this Agreement.

RECITALS:

WHEREAS, Precision and the Company wish to exchange certain data and other information of a confidential or proprietary nature, all for the purpose of exploring potential and/or existing business relationships, to the parties' mutual benefit (the "Purpose"); and

WHEREAS, for the purposes herein, either the Company or Precision, respectively ("Disclosing Party") may disclose, from time to time, such data and information to Precision or the Company, respectively ("Receiving Party") on a confidential basis;

NOW THEREFORE, for and good and valuable consideration, the receipt and legal adequacy of which is hereby acknowledged, Precision and the Company agree as follows:

1. **Confidential Information.** For purposes of this Agreement, the term "Confidential Information" shall include, but not be limited to, all information (whether or not in writing, whether or not specifically labeled or identified as "confidential" and regardless of the form or medium in which such information is embodied) of a private, secret, non-public or reasonably considered confidential nature (given the nature of the information or circumstances surrounding its disclosure) concerning Disclosing Party's business, business relationships or financial affairs, including, without limitation, (i) non-public information about the Disclosing Party's intellectual property, trade secrets, unpublished patent applications, data, methods of operation, manufacturing, products or services, regulatory compliance, processes, product technologies, developments, or plans, (ii) third-party information that Disclosing Party is obligated to keep confidential, and (iii) the nature, content and existence of this Agreement, the Purpose, and any discussions or negotiations between the Parties. The term "Confidential Information" also includes information that Receiving Party knows or has reason to know is confidential. For avoidance of doubt, information shall be deemed to be "disclosed" if Receiving Party accesses, receives or otherwise acquires such information in the course of fulfilling the Purpose, regardless of whether such disclosure was intended.
2. **Non-Disclosure of Confidential Information.** The Receiving Party agrees that it will use the Confidential Information that it receives solely for the Receiving Party's informational purposes and for no other purpose. The Receiving Party shall keep the Confidential Information strictly confidential and shall not disclose any of the Confidential Information to any person or entity or use any of the Confidential Information for any other purpose.
3. **Limitations of Confidential Information.** For purposes of this Agreement, the term "Confidential Information" does not include any information that (a) was in the public domain at the time it was communicated to the Receiving Party; (b) entered the public

domain through no fault of the Receiving Party, subsequent to the time it was communicated to the Receiving Party by the Disclosing Party; or (c) is generally known in the Receiving Party's trade or industry, and was not gained by breach of this Agreement. All Confidential Information furnished to the Receiving Party by the Disclosing Party is the sole and exclusive property of the Disclosing Party and its assigns.

4. Term. This Agreement shall continue in full force and effect for a period of five (5) years as of the Effective Date (the "Term"). However, the duties and obligations to protect Confidential Information disclosed under this Agreement during the Term shall survive any termination or expiration of this Agreement. Both Parties shall have the option to extend the Term upon such terms and conditions as both Parties may mutually agree.
5. Return of Property and Confidential Information. Upon the request of the Disclosing Party at any time, Receiving Party agrees to immediately return to the Disclosing Party all of the Disclosing Party's Confidential Information within Receiving Party's possession or control, including but not limited to all originals and all copies of Confidential Information (in whatever form the same may exist, including documentary, electronic, audio, video or other), without retaining any copies or access to any Confidential Information. The obligations contained in this Paragraph shall also apply to any property (including Confidential Information) which belongs to a third-party that was provided to the Receiving Party. Notwithstanding the foregoing, (a) the Receiving Party may retain in a secure place in its legal files one archival copy of the Confidential Information solely for verification purposes and (b) the Receiving Party shall not be required (i) to destroy or erase any general electronic archive or back-up tapes that are routinely kept by the Receiving Party in the ordinary course of business pursuant to records retention policies, (ii) to return, destroy or erase any documentation (A) subject to "litigation holds" on destruction of documents imposed by its or their counsel in connection with pending or threatened litigation or (B) which is the subject of a dispute regarding this Agreement, the Purpose or what was included in such Confidential Information or (iii) to return, destroy or erase any documentation required to be retained by reason of legal, accounting or regulatory purposes or requirements, with such retained copies to be kept confidential in accordance with the terms hereof.
6. Permitted Disclosure. In the event that the Receiving Party is requested or required (by deposition, interrogatory, request for documents, subpoena, civil investigative demand or similar legal, judicial or regulatory process or as otherwise required by applicable law or regulation) to disclose any of the Confidential Information, the Receiving Party shall (a) to the extent practicable, provide the Disclosing Party with prompt written notice of such request or requirement, and (b) cooperate with the reasonable requests of the Disclosing Party so that it may seek a protective order or other appropriate remedy. In the event that such protective order or other remedy is not obtained, or the Disclosing Party waives compliance with the terms and provisions hereof, the Receiving Party may disclose only that portion of the Confidential Information that, in the written opinion of the Receiving Party's counsel, the Receiving Party is legally required to disclose.
7. No License. Each of the parties acknowledges that the Confidential Information is the property of the Disclosing Party and the disclosure thereof to the Receiving Party does not

convey any right, title or license in such Confidential Information to the Receiving Party. Each of the parties agrees in its capacity as a Receiving Party not to appropriate the Confidential Information of the Disclosing Party to its own use or to the use of any third party and shall only use such Confidential Information in accordance with the terms hereof.

8. No Representation Regarding Confidential Information. The Receiving Party understands, acknowledges and agrees that the Disclosing Party is not making any representation or warranty hereunder, express or implied, as to the accuracy or completeness of the Confidential Information furnished to the Receiving Party, that any Confidential Information is being provided on an "as is" basis and the Disclosing Party shall not have nor assume any liability hereunder to the Receiving Party for any matter contained in or omitted from any of the Confidential Information. No license or other right in the Confidential Information is granted pursuant to this Agreement.
9. Remedies. Receiving Party agrees that money damages would not be a sufficient remedy (and is not readily calculable) for any breach of this Agreement and that the Disclosing Party will be irreparably harmed as a result of any such breach and that it shall be entitled to equitable relief, including, without limitation, injunctive relief (including, without limitation, the right to obtain a temporary and/or permanent injunction) and specific performance (without being required to obtain a bond or post other security or prove actual damages or irreparable harm), in the event of any breach or threatened breach of any of the provisions of this Agreement by the Receiving Party, in addition to all other rights and remedies available to the Disclosing Party, whether at law, in equity or otherwise relating to such breach. All the rights and remedies of the Disclosing Party hereunder shall be cumulative.
10. Anti-corruption Regulations. The parties undertake (i) not to have taken and not to take any action that can be considered a violation of anti-corruption legislation in force, including, but not limited to, Decree No. 5,687/06 (United Nations Convention against Corruption), US Foreign Corrupt Practices Act, and, as applicable, the Inter-American Convention Against Corruption (IACAC Convention), the Convention on Combating Bribery of Foreign Public Officials in International Business Transactions (OECD Convention), and the UK Anti Bribery Act 2010, and to take all necessary measures to ensure full compliance therewith, and (ii) to perform any obligation hereunder with full compliance with the highest standard of ethical conduct.
11. Choice of Law; Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of South Carolina, without regard to the choice of law rules, or conflicts of principles of such laws. The parties unconditionally consent to the jurisdiction of the courts of the State of South Carolina located in Greenville County and the Federal Southern District of South Carolina with respect to any action, suit or proceeding arising out of or relating to this Agreement. The parties unconditionally and irrevocably waive any right to have a jury trial in any such action, suit or other proceeding.
12. Notice. All notices, consents, directions, approvals, instructions, requests and other communications required or permitted by the terms of this Agreement shall be in writing and shall be sent to Precision and the Company on their respective addresses or facsimile

numbers on the signature page of this Agreement or to such other address or facsimile number as Precision or the Company may have furnished to the other in writing in accordance herewith. All notices, consents, directions, approvals, instructions, requests and other communications hereunder shall be sent and effective as follows: (i) on the business day delivered, when delivered personally; (ii) five (5) business days after mailing if mailed by registered or certified mail, return receipt requested (postage prepaid); (iii) on the next business day if sent by a nationally recognized overnight express courier service with all costs prepaid and provided evidence of delivery is available; or (iv) on the business day of a facsimile or e-mail transmission if received on a business day between the hours of 9:00 a.m. and 5:00 p.m., local time, or on the next business day if received after that time, in each case provided that an automatic machine confirmation indicating the time of receipt is generated.

13. Assignment. This Agreement is not assignable without the prior written consent of Precision. Any attempted assignment without such consent shall be void ab initio and of no force or effect. This Agreement shall be binding upon and inure to the benefit of Precision and the Company hereto, and their respective successors and permitted assigns.
14. Severability. If any provision of this Agreement is held by a court of competent jurisdiction to be invalid, illegal or unenforceable, such invalidity, illegality or unenforceability shall not affect or render invalid, illegal or unenforceable any other provision of this Agreement and to the fullest extent permitted by applicable law, such provision will be valid, legal and fully enforceable, and such invalid, illegal or unenforceable provision shall be amended in a manner that such provision will be valid, legal and fully enforceable. It is the intent of Precision and the Company that each and every provision of this Agreement shall be enforced to the maximum extent permitted by applicable law.
15. Entire Agreement; Amendment. This Agreement sets forth the entire understanding and agreement between Precision and the Company with respect to the subject matter hereof and it supersedes all prior and/or contemporaneous understandings and agreements, whether written or oral, with respect to such subject matter, all of which are merged herein. This Agreement may not be modified, released, discharged, abandoned or otherwise amended, in whole or in part, except by a written instrument, executed by Precision and the Company.
16. Headings. The headings contained in this Agreement are for reference purposes only and shall not affect in any way the meaning, construction or interpretation of this Agreement.
17. Counterparts. This Agreement may be executed in any number of counterparts, each of which when executed shall be deemed to be an original, but all of which, when together, shall constitute one and the same document. This Agreement may be executed by facsimile or electronic signature (including .pdf or similar image) which shall constitute a valid and binding signature for the purposes hereof.

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IN WITNESS WHEREOF, each of Precision and the Company has executed this Agreement as of the 2nd day of January 2025.

Precision Valve Holdings Corporation

By: _____

Name:

Title:

Address: 5711 Old Buncombe Road
Greenville, SC 29609 USA

Email:

Company: Brag & Bev L.L.C

By: Jacob Bevier _____

Name: Jacob Bevier

Title: CEO

Address: 105 Pendleton Trail
Tyrone, GA 30290